

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 04/07/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: MS25-1031
CASE NAME: EQUITY RESIDENTIAL MANAGEMENT, LLC VS. SITIVENI MEAFOOU
JURY TRIAL
FILED BY: MEAFOOU, SITIVENI
TENTATIVE RULING:

Law & Motion

2. 9:00 AM CASE NUMBER: L22-04110
CASE NAME: VELOCITY INVESTMENTS LLC VS. NICOLE MUNOZ
HEARING IN RE:
FILED BY: MUNOZ, NICOLE

TENTATIVE RULING:

Background

Defendant filed a Motion, on 1/23/26, to set aside the Default Judgment, claiming that there was a lack of actual notice, under Section 473.5 of the CCP.

The Default Judgment was filed on 10/23/25.

Notice of this Motion was timely filed on Plaintiff.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process

Section 473.5(a) of the CCP requires that a defendant make this motion either within 2 years from the time judgment was taken, or 180 days after service on defendant with written notice that judgment was taken, whichever occurs earlier.

In the instant matter, Defendant's Motion was filed more than 2 years after time of judgment, which is outside the permissible time window.

Disposition

Defendant's Motion is Denied.

Plaintiff to file the Order.

3. 9:00 AM CASE NUMBER: L22-06113

CASE NAME: CAPITAL ONE N.A. VS. EDWIN CHIRINO

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.